

Senate Resolution 6; 41st Congress, 1st Session

United States. Congress. Senate

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***** START OF THE PROJECT GUTENBERG EBOOK SENATE
RESOLUTION 6; 41ST CONGRESS, 1ST SESSION *****

41ST CONGRESS,
1st SESSION. **S. 6.**

IN THE SENATE OF THE UNITED STATES.

March 5, 1869.

Mr. ANTHONY asked, and by unanimous consent obtained, leave to bring in the following bill;
which was read twice, and ordered to be printed.

A BILL

To provide stationery for Congress and the several departments, and for
other purposes.

1 *Be it enacted by the Senate and House of Representatives*
2 *of the United States of America in Congress assembled,*

3 That upon the passage of this act the heads of each of the
4 executive and judicial departments at Washington, District of
5 Columbia, shall immediately cause estimates to be made of
6 the amount of stationery and other articles which will be
7 required by them for the ensuing year, which are now furnished
8 as stationery or under stationery contracts, and forward
9 the same to the Congressional Printer, who shall immediately
10 issue proposals for such articles and stationery and make
11 purchases of the same, in the manner and under the regulations
12 provided for in this act.

1 SEC. 2. *And be it further enacted*, That the Congressional
2 Printer shall, at the beginning of each session of Congress,
2 3 submit to the Joint Committee on Public Printing estimates
4 of the quantity of paper, of all descriptions, which will, in his
5 opinion, be required for the public printing during the ensuing
6 year; and also estimates of the quantity and articles of
7 stationery required for each and all of the executive and judicial
8 departments at Washington, and for the Senate and House of
9 Representatives and the Congressional printing office.

1 SEC. 3. *And be it further enacted*, That the heads of
2 the several executive and judicial departments, and the Secretary
3 of the Senate and Clerk of the House of Representatives,

4 shall, on or before the twentieth day of November, in
5 each year, furnish, or cause to be furnished, to the Congressional
6 Printer estimates of the articles and the quantity of each
7 which will be required for their several departments for the
8 year following.

1 SEC. 4. *And be it further enacted*, That the Joint Committee
2 on Public Printing shall then fix upon standards of
3 paper for the different descriptions of public printing, and for
4 all stationery and articles required, and the Congressional
5 Printer shall, under their direction, advertise in two newspapers
6 published in each of the cities of Boston, New York,
7 Philadelphia, Baltimore, Washington, and Cincinnati, and in
8 any other city where in their judgment it may become necessary,
9 for sealed proposals to furnish the government with
10 paper and all other articles of the quality and in the quantities
3 11 specified in the advertisement, which shall specify the
12 quantity and quality of all the articles required; and he shall
13 furnish to the applicants samples of the standard articles
14 which have been adopted.

1 SEC. 5. *And be it further enacted*, That the advertisements
2 for sealed proposals shall specify the minimum portion
3 of each article required for either three months, six months,

4 or one year, as the Joint Committee on Public Printing may
5 determine; but when the minimum portion so specified exceeds
6 in any case one thousand reams of paper, the advertisements
7 shall state that proposals will be received for one
8 thousand reams or more.

1 SEC. 6. *And be it further enacted*, That all sealed proposals
2 to furnish any article shall be opened in the presence
3 of the Joint Committee on Printing, and the contracts shall be
4 awarded by the committee to the lowest and best bidder for
5 each article or class for the interest of the government; but
6 they shall not consider any proposal which is not accompanied
7 by satisfactory evidence that the person making it is a
 manufacturer
8 or dealer in the articles which he proposes to furnish,
9 and the said joint committee shall, in their award of each contract,
10 allow and designate a reasonable time for filling it.

1 SEC. 7. *And be it further enacted*, That no contract
2 for furnishing paper or any other article shall be valid until it
3 has been approved by said joint committee, (if made under
4 their direction, or by the Secretary of the Interior, if made
5 under his direction,) according to the provisions of section
6 nine.

1 SEC. 8. *And be it further enacted*, That the Congressional
2 Printer shall compare all articles delivered by any contractor
3 with the standard of quality, and shall not accept any
4 article which does not conform to it; and in case of a difference
5 of opinion between the Congressional Printer and any
6 contractor with respect to the quality of any article furnished,
7 the matter of difference shall be determined by the Joint
Committee
8 on Printing, or in the recess of Congress by the Secretary
9 of the Interior.

1 SEC. 9. *And be it further enacted*, That in default of
2 any contractor to furnish the articles contracted for at the
3 proper time, or of the proper quality or weight, the Congressional
4 Printer shall report such default to the Joint Committee
5 on Public Printing if Congress is in session, or to the
6 Secretary of the Interior if Congress is not in session; and
7 he shall, under the direction of the Joint Committee on
8 Public Printing, or of the Secretary of the Interior, as the
9 case may be, enter into a new contract with the lowest and
10 best bidder for the interest of the government among those
11 whose proposals were rejected at the last opening of bids, or
12 he shall advertise for new proposals, under the regulations

13 concerning advertisements for proposals hereinbefore stated;
14 ⁵ and during the interval which may thus occur he shall, under
15 the direction of the Joint Committee on Public Printing, or
16 of the Secretary of the Interior, as above provided, purchase
17 in open market, at the lowest market price, all such articles
18 necessary for use.

1 SEC. 10. *And be it further enacted*, That in case of any
2 contractor's default to comply with this contract he and his
3 securities shall be charged with and held responsible for any
4 increase of cost to the government in procuring the supply
5 which may be consequent upon such default.

1 SEC. 11. *And be it further enacted*, That when any
2 such default occurs the Congressional Printer shall report it,
3 with a full statement of all the facts in the case, to the
4 Solicitor of the Treasury, who shall prosecute the defaulting
5 contractor and his securities upon their bond in the circuit
6 court of the United States in the district in which such
7 defaulting contractor resides.

1 SEC. 12. *And be it further enacted*, That the Joint
2 Committee on Public Printing, or during the recess of Congress
3 the Secretary of the Interior, may authorize the Congressional

4 Printer to make purchases in open market whenever,
5 in their opinion, the quantity required is so small, or the
6 want is so immediate, as not to justify advertisement for proposals
7 and the award of a contract therefor.

1 SEC. 13. *And be it further enacted*, That the Congressional

6 2 Printer shall charge himself in a book, to be kept for
3 that purpose, with all paper and other articles or material
4 received for the public use, and he shall furnish the same to
5 the foremen of printing and binding, and to the officers of
6 the executive and judicial departments, and of the Senate and
7 House of Representatives authorized to receive them, on
8 their written requisitions as the public service may require
9 them, taking a receipt from each officer for such article, which
10 shall be entered to his credit; and accounts shall be kept
11 with each department, and all articles delivered charged to
12 them. And to carry out the provisions of this act the
13 Congressional Printer may employ one clerk of the fourth class,
14 one of the second class, and one messenger, and shall give an
15 additional bond of forty thousand dollars, and receive, in
16 addition to his present salary, one thousand dollars.

1 SEC. 14. *And be it further enacted*, That from and
2 after the passage of this act it shall be unlawful to make further

3 contracts or purchases or payment for any stationery
4 or article furnished as such, except under existing contracts
5 and in accordance with the regulations hereinbefore provided.

1 SEC. 15. *And be it further enacted*, That all acts and
2 parts of acts inconsistent with the foregoing provisions are
3 hereby repealed.

*** END OF THE PROJECT GUTENBERG EBOOK SENATE
RESOLUTION 6; 41ST CONGRESS, 1ST SESSION ***

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